

Before the Federal Maritime Commission, Washington, DC.

Docket No. 25-08

FormuKleen, Inc.
(Complainant)

vs.

Top Shipping Systems, Corp.
(Respondent)

**COMPLAINANT’S RESPONSE TO RESPONDENT’S NOTICE OF CONTINUED
PRODUCTION AND SUPPLEMENTAL COMPLIANCE**

Complainant FormuKleen, Inc., by and through its representative, submits this Response to Respondent Top Shipping Systems Corp.’s Notice of Continued Production and Supplemental Compliance with April 1, 2026 Order.

Respondent’s new production does not cure Complainant’s pending Motion to Enforce. Complainant has reviewed Respondent’s supplemental production and it does not cure the specific enforcement issues raised in Complainant’s Motion to Enforce. It does not produce or identify the specific missing third-party communications for the two subject containers. It does not identify Bates ranges. It does not cure Respondent’s redactions. It does not provide unredacted copies subject to the Protective Order. It does not submit disputed redactions for in camera review. It does not establish that Respondent conducted targeted searches for the subject containers, relevant third parties, shipment numbers, charges, payments, routing, storage, or delivery records.

Instead, Respondent filed a Notice announcing a broad, rolling production concerning “all FormuKleen shipments” and then produced hundreds of pages of additional material without curing the specific deficiencies before the Presiding Officer. That is not compliance. It is an attempt to create the appearance of compliance while leaving the enforcement issues unresolved.

Respondent’s Notice confirms, rather than moots, Complainant’s Motion to Enforce. Respondent now admits that, “upon further review” and “in an abundance of caution,” it is supplementing its production beyond what it previously produced. Respondent also admits that this supplemental production involves a “significant number of additional documents and communications,” that production is “ongoing,” and that TSS will “continue to identify, compile, and produce” additional materials before the discovery cutoff. That is an admission that Respondent’s prior production was incomplete.

Complainant’s Motion to Enforce concerns Respondent’s failure to produce and identify the compelled third-party communications and RFP No. 7 charge/payment materials necessary to determine what TSS did regarding the two subject containers, CHSU4047424 and BSIU8431017, together with Respondent’s improper redactions, refusal to identify Bates ranges, and inadequate search methodology.

Respondent’s new production does not cure those issues. Producing hundreds of pages of additional material does not satisfy Respondent’s obligation to identify and produce the responsive communications and records for the two subject containers. A document dump is not compliance with a discovery order.

Respondent should not be permitted to avoid enforcement by burying Complainant in a rolling production of additional materials while failing to cure the specific deficiencies placed before the Presiding Officer. If Respondent has the compelled communications and records for CHSU4047424 and BSIU8431017, it should produce and identify them. If Respondent does not have them, it should say so under oath.

What Respondent cannot do is avoid enforcement by announcing a vague, ongoing, voluminous production and asking the Presiding Officer to treat that as compliance.

Respondent's Notice also attempts to reframe the problem as one of burden. Respondent states that supplementing production to encompass all shipments involves a "significant number of additional documents and communications," and again invokes small-business status and reduced staffing. That does not answer Complainant's Motion to Enforce. Respondent cannot manufacture burden by expanding the production universe while still failing to identify the materials responsive to the two subject containers at the center of Complainant's motion.

The Notice does not moot Complainant's pending request for sanctions, adverse inference, Bates-range identification, in camera review, or other enforcement relief. To the contrary, Respondent's Notice confirms that additional responsive materials existed, that Respondent's prior production did not fully encompass the scope of the April 1 Order, and that Respondent is still producing only after Complainant was forced to seek enforcement.

Complainant respectfully requests that the Presiding Officer proceed to rule on Complainant's pending Motion to Enforce. Respondent's belated, ongoing, and unidentified supplemental production does not cure the enforcement issues. Respectfully, the Presiding

Officer should require Respondent to identify the Bates ranges for all responsive materials relating to CHSU4047424 and BSIU8431017, complete any remaining compelled production immediately, submit disputed redacted materials for in camera review or produce them unredacted subject to the Protective Order, and grant the enforcement and sanctions relief requested in Complainant's Motion.

Respectfully submitted,

Sara Dandan

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Date: 05/20/2026

CERTIFICATE OF SERVICE

I certify that on May 20, 2026, a true and correct copy of the foregoing was filed via electronic mail with the Federal Maritime Commission and the following known parties of record for the Respondent:

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